



March 27, 2023

Representative Zack Stephenson
Chair of the Minnesota House Commerce Finance and Policy Committee
449 State Office Building
St. Paul, MN 55155

RE: HF 2680 – Minnesota Age-Appropriate Design Code Act Provisions – Oppose

Dear Representative Stephenson:

We write to respectfully request that you exclude the “Minnesota Age-Appropriate Design Code Act” (“Act”) from HF 2680.¹ While we strongly agree with protecting Minnesota’s children and teens online, the Act would subject an excessively large range of companies to severe requirements and restrictions that would hamper innovation and hurt Minnesota consumers.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with you further on the specific issues we have with the Act outlined below.

The Act is modeled after legislation in California that is currently subject to legal scrutiny. Minnesota should not advance a legislative proposal that is based on a law that is already being challenged in the courts.³ The Act contains several provisions that very likely abridge First Amendment and Fourth Amendment protections as well as the Due Process and Commerce Clause of the United States Constitution. Challenges to a very similar law enacted in California are already underway in California courts.⁴ Minnesota’s Legislature should not follow in California’s footsteps by passing a law that abridges minors’ constitutional protections and risks being invalidated.

The Act’s definition of child as “a consumer who is under 18 years of age” goes far beyond other definitions in privacy laws. The Children’s Online Privacy Protection Act (“COPPA”) defines a child as an individual under 13 years of age, and no other state privacy law currently defines a child as under 18 (“U-18”). This broad definition of a “child” in the Act would result in an environment where a toddler may be treated the same as a student about to enter college.

In addition, the Act sweeps in any digital property that displays even minimal advertising that could appeal to U-18s, which will result in nearly every company falling under the Act’s reach. For example, the Act could be read to apply to the online offerings of clothing retailers, professional sports

¹ Minnesota HF 2680 (Reg. Sess. 2023), located [here](#).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.

³ Complaint, *NetChoice LLC v. Bonta* (N.D. Cal., Dec. 14, 2022), located [here](#).

⁴ *Id.*

organizations, and restaurants, simply because it's possible 17-year-olds may access them. In addition, to help ensure "children" are not "likely" to access an online service, product, or feature, businesses may require online visitors to pass through "age gates" for access. Anyone attempting to access a website would have to provide specific age information to the site owner before reading its contents. The Act would significantly hamper an individual's ability to seamlessly move from one website to the next to reach desired information or content. Moreover, the Act's onerous standards and broad reach will severely hinder companies from doing business in Minnesota and degrade the consumer experience online.

The Act would deprive Minnesota's youth of access to and benefits from the Internet. The Act would prevent Minnesota minors from accessing a wealth of information that otherwise would be at their fingertips. Shrinking the variety of content, viewpoints, voices, and information 17-year-olds can reach will not protect them but instead will ensure they will not have the same experience with the Internet as their contemporaries living in other states. The Act will turn off or severely limit Minnesota minors' access to the greatest informational resource in modern history.

The Act's definition of "child" to include teens will make them lose access to future opportunities. The Act prohibits the use of personal information about a child for any reason other than the reason the personal information was collected. This prohibition could functionally end access to information about future options for Minnesota high school seniors, which would deprive them of the ability to learn about colleges, trade programs, military recruitment, employment opportunities, and a myriad of other interest areas. Minnesota should not enact a law that could hurt minors' ability to plan for their futures.

The overly broad definitions included in the Act would apply to many websites and applications with intended audiences outside of this scope. Imposing the Act's requirements onto most of the Internet will decrease innovation, remove vital benefits of the Internet for teens, harm the consumer experience, and hamper the data-driven economy.

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We and our members support privacy protections for children and teens. We believe, however, that the Act takes the wrong approach to such matters. We therefore respectfully ask you to exclude the Act from Minnesota HF 2680. Thank you in advance for your consideration of this letter.

Sincerely,

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CC: Members of the Minnesota House Commerce Finance and Policy Committee

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